effect and impact of the law on the rights guaranteed under Part III has to be taken into account for determining whether or not it destroys basic structure. The impact test would determine the validity of the challenge.

3. All amendments to the Constitution made on or after 24th April, 1973 by which the Ninth Schedule is amended by inclusion of various laws therein shall have to be tested on the touchstone of the basic or essential features of the Constitution as reflected in Article 21 read with Articles 14 and 19 and the principles underlying them. To put it differently, even though an act is put in the Ninth Schedule by a Constitutional Amendment, its provisions would be open to attack on the ground that they destroy or damage the basic structure if the Fundamental Right or rights taken away or abrogated pertains or pertain to the basic structure.

4. Justification for conferring protection, not blanket protection, on the laws included in the Ninth Schedule by Constitutional Amendments shall be a matter of constitutional adjudication by examining the nature and extent of infraction of a Fundamental Right by a statute, sought to be constitutionally protected, and on the touchstone of the basic structure doctrine as reflected in Article 21 read with Articles 14 and 19 by application of the "rights test" and the "essence of the right" test taking the synoptic view of the articles in Part III as held in the *Indira Gandhi* Case[16]. Applying the above test to the Ninth Schedule laws, if the infraction affects the basic structure, then such a law or laws will not get the protection of the Ninth Schedule. When the triangle of Article 21 read with Article 14 and Article 19 is sought to be eliminated not only the "essence of the right" test but also the "rights test" has to apply. There is also a difference between the "rights test" and the "essence of the right" test. Both form part of application of the basic structure doctrine. When in a controlled constitution conferring limited power of amendment, an entire chapter is made in applicable, the "essence of the right" test as applied in *Nagaraj* case[17] will have no applicability. In such a situation, to judge the validity of the law, it is the "rights test" which is more appropriate.

5. If the validity of any Ninth Schedule law has already been upheld by this Court, it would not be open to challenge such law again on the principles declared by this judgement. However, if a law held to be violative of any rights in Part III is subsequently incorporated in the Ninth Schedule after 24th April, 1973, such a violation / infraction shall be open to challenge on the ground that it destroys or damages the basic structure as indicated in Article 21 read with Articles 14 and 19 and the principles underlying them.

6. Action taken and transactions finalized as a result of the impugned Acts shall not be open to challenge.

The number of acts and regulations included in the Ninth Schedule before and after April 24, 1973 are mentioned in Table 27.1.

Table 27.1 Number of Acts and Regulations Included in the Ninth Schedule

Serial Number	Amendment Number (Year)	Number of Acts and Regulations Included in the Ninth Schedule
I. Included Before April 24, 1973		